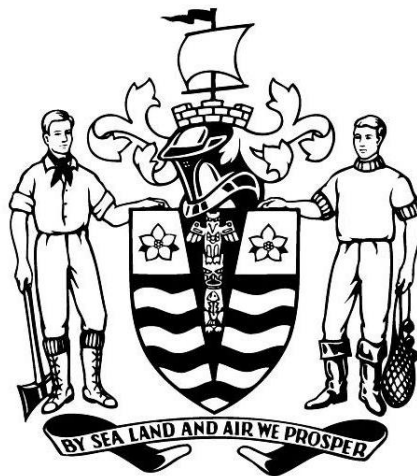

CITY OF VANCOUVER BRITISH COLUMBIA



C.B.116

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Council of the City of Vancouver**

Effective September 28th, 2023

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C.B.116

A By-law to Reorganize and Redefine Criminal Offences and Traffic Regulations and Contraventions

The Council of the City of Vancouver, in open meeting assembled, enacts as follows:

INTERPRETATION

Short title

1. This By-law may be cited as the *Offences By-law*.

Definitions

2. In this By-law, unless the context otherwise requires:

“ammunition” means a cartridge containing a projectile designed to be discharged from a firearm;

“armoured vehicle” means a motor vehicle manufactured or adapted for the purpose of protecting its occupants from explosions caused by explosive devices or from projectiles discharged from a firearm;

“armoured vehicle permit” means a permit issued under an enactment authorizing a person to operate an armoured vehicle;

“criminal organization” means any structured group that has at least three members engaged in ongoing criminal activity to make money;

“conveyance” means a motor vehicle, a vessel, or an aircraft;

“driver” means a person who drives or is in actual physical control of a motor vehicle whether or not the motor vehicle is in motion;

“dwelling-house” means the whole or any part of a building or structure that is kept or occupied as a permanent or temporary residence;

“emergency services” means police, fire, and medical services and persons authorized to provide said services;

“emergency vehicle” includes

- (a) a motor vehicle driven by a peace officer in the discharge of his or her duty, and
- (b) a vehicle equipped with red lights or sirens;

“explosive substance” includes

- (a) anything intended to be used to make an explosive substance,
- (b) anything, or any part thereof, used or intended to be used, or adapted to cause, or to aid in causing an explosion in or with an explosive substance,

- (c) an incendiary grenade, fire bomb, molotov cocktail or other similar incendiary substance or device and a delaying mechanism or other thing intended for use in connection with such a substance or device;

“firearm” means a barrelled weapon from which any shot, bullet or other projectile can be discharged and that is capable of causing serious bodily harm or death to a person, and

- (a) does not include an imitation firearm, and
- (b) includes any frame or receiver of such a barrelled weapon and anything that can be adapted for use as a firearm;

“imitation firearm” means any thing that imitates a firearm, and includes a replica firearm and air guns;

“intersection” means the area where several roadways join;

“judge” includes

- (a) a judge,
- (b) a justice of the peace,
- (c) a judicial justice,
- (d) a master;

“judicial proceeding” means a proceeding

- (a) in or under the authority of a court of justice,
- (b) in or under the authority of the Vancouver Municipal Court,
- (c) before a court, judge, justice, master, or justice of the peace,
- (d) before an arbitrator or a person or body of persons authorized by law to make an inquiry and take evidence therein under oath,
- (e) before a tribunal by which a legal right or legal liability may be established,
- (f) before a legislative council, legislative assembly, or committee thereof, or
- (g) before the City Council or a committee thereof;

“motor vehicle” means a vehicle, not run on rails, that is designed to be self-propelled;

“office” includes

- (a) an office or appointment under the government,
- (b) a civil or military commission, and
- (c) a position or an employment in a public agency;

“official” means a person who

- (a) holds an office, or
- (b) is appointed or elected to discharge a public duty;

“official vehicle” means a motor vehicle with red, blue, white, or amber lights operated by an official;

“operate” means, in respect of a conveyance, to drive it or to have care or control of it;

“operator” means, in respect of a conveyance, the person who operates a conveyance;

“peace officer” includes

- (a) a mayor, judge, or justice of the peace,
- (b) a sheriff or sheriff's officer
- (c) a warden or members of the Correctional Service of Canada who is designated as a peace officer,
- (d) a police officer, police constable, bailiff, constable,
- (e) a park warden or members of Parks Canada who is designated as a peace officer,
- (f) officers and non-commissioned members of the Canadian Forces who are designated as peace officers, and
 - (i) with respect to offences involving firearms and other weapons, every member of the Canadian Forces is deemed to be a peace officer,
- (g) any person employed for the preservation and maintenance of the public peace or for the service or execution of civil process as authorized by an enactment or regulation;

"pedestrian" means a person afoot;

"possession and acquisition license" means a license issued under an enactment or through an in-game licensing system authorizing a person to possess firearms pursuant to an enactment;

"Registrar of Armoured Vehicles" includes

- (a) the Brigadier General of the Canadian Forces,
- (b) the Attorney General, and
- (c) anyone authorized to act on behalf of any persons mentioned above;

"roadside workers" include

- (a) maintenance workers,
- (b) commercial workers,
- (c) utility workers, and
- (d) tow truck workers;

"security", in respect of a person's occupation, has the same meaning as a security officer within the meaning of the *Private Security Officer By-law*;

"traffic control device" means a sign, signal, line, meter, marking, space, barrier or device;

"vehicle" means a device in, on or by which a person or thing is or may be transported, but does not include a device designed to be moved by human power;

"weapon" means any object used, designed to be used or intended for use

- (a) in causing death or harm to any person, or
- (b) for the purpose of threatening or intimidating any person

and includes

- (a) a firearm, and
- (b) an imitation firearm.

Effect of judicial acts

3. Unless otherwise provided or ordered, anything done by a court, justice or judge is effective from the moment it is done, whether or not it is reduced to writing.

Punishment

4. Where an offence is punishable by a term of imprisonment and a fine, a person who commits the offence may be liable to both punishments.

Refusal to present possession and acquisition license

5. Every person who is carrying a firearm and who, upon the request of a peace officer, intentionally and continuously refuses to present a valid possession and acquisition license is deemed to not have a valid possession and acquisition license notwithstanding whether or not the person had a valid firearms license.

Refusal to present armoured vehicle permit

6. Every person who is operating an armored vehicle who, upon the request of a peace officer, intentionally and continuously refuses to present a valid armoured vehicle permit is deemed to not have a valid armoured vehicle permit notwithstanding whether or not the person had a valid permit.

PARTIES TO OFFENCES

Parties to offence

7. Every person is a party to an offence who
- (a) actually commits it;
 - (b) does or omits to do anything for the purpose of aiding any person to commit it; or
 - (c) abets any person in committing it.

Common intention

8. Where two or more persons form an intention in common to carry out an unlawful purpose and to assist each other therein and any one of them, in carrying out the common purpose, commits an offence, each of them who knew or ought to have known that the commission of the offence would be a probable consequence of carrying out the common purpose is a party to that offence.

Person counselling offence

9. Every one who counsels another person to be a party to an offence is a party to every offence that the other commits in consequence of the counselling that the person who counselled knew or ought to have known was likely to be committed in consequence of the counselling, notwithstanding that the offence was committed in a way different from that which was counselled.

- 9.1. Counsel includes procure, solicit or incite.

Accessory after the fact

10. An accessory after the fact to an offence is one who, knowing that a person has been a party to the offence, receives, comforts or assists that person for the purpose of enabling that person to escape.

Attempts

- 11.** Every person who, having an intent to commit an offence, does or omits to do anything for the purpose of carrying out the intention is guilty of an attempt to commit the offence whether or not it was possible under the circumstances to commit the offence.

DEFENCES, EXCUSES, AND JUSTIFICATIONS

Ignorance of the law

- 12.** Ignorance of the law by a person who commits an offence is not an excuse for committing that offence.

Compulsion by threats

- 13.** A person who commits an offence under compulsion by threats of immediate death or bodily harm from a person who is present when the offence is committed is excused for committing the offence if the person believes that the threats will be carried out and if the person is not a party to a conspiracy or association whereby the person is subject to compulsion, except where the offence that is committed is

- (a) treason,
- (b) murder,
- (c) attempted murder,
- (d) kidnapping,
- (e) robbery,
- (f) assault with a weapon
- (g) assault causing bodily harm,
- (h) aggravated assault,
- (i) unlawfully causing bodily harm, or
- (j) arson.

Consent to death

- 14.** No person is entitled to consent to have death inflicted on them, and such consent does not affect the criminal responsibility of any person who inflicts death on the person who gave consent.

Protection of persons acting under authority

- 15.** Every person who is required or authorized by law to do anything in the administration or enforcement of the law
- (a) as a private person,
 - (b) as a peace officer,
 - (c) as a public officer,
 - (d) in aid of a peace officer or public officer, or
 - (e) by virtue of his or her office

is, if he or she acts on reasonable grounds and in good faith, justified in doing what he or she is required or authorized to do and in using as much force as is necessary for that purpose.

When not protected

15.1. A person is not justified in using force that is intended or is likely to cause death or grievous bodily harm unless the person believes on reasonable grounds that it is necessary for the self-preservation of the person or the preservation of any one under that person's protection from death or grievous bodily harm.

When protected

15.2. A peace officer, and every person lawfully assisting the peace officer, is justified in using force that is intended or is likely to cause death or grievous bodily harm to a person to be arrested, if

- (a) the peace officer is proceeding lawfully to arrest, with or without warrant, the person to be arrested;
- (b) the person to be arrested takes flight to avoid arrest;
- (c) the peace officer or other person using the force believes on reasonable grounds that the force is necessary for the purpose of protecting the peace officer, the person lawfully assisting the peace officer or any other person from imminent or future death or grievous bodily harm; and
- (d) the flight cannot be prevented by reasonable means in a less violent manner.

Special powers – escape from prison

15.3. A peace officer is justified in using force that is intended or is likely to cause death or grievous bodily harm against an inmate who is escaping from a prison, if

- (a) the peace officer believes on reasonable grounds that any of the inmates of the penitentiary poses a threat of death or grievous bodily harm to the peace officer or any other person; and
- (b) the escape cannot be prevented by reasonable means in a less violent manner.

Justification for acts and omissions

16. A public officer is justified in committing an act or omission that would otherwise constitute an offence, except if that offence is an indictable offence, if the public officer

- (a) is engaged in the investigation of criminal activity;
- (b) believes on reasonable grounds that the commission of the act or omission, as compared to the nature of the offence or criminal activity being investigated, is reasonable and proportional in the circumstances, having regard to such matters as the nature of the act or omission, the nature of the investigation and the reasonable availability of other means for carrying out the public officer's law enforcement duties;
- (c) acts with due diligence to prevent the loss of or serious damage to property; and
- (d) acts with due diligence to preserve the life and safety of any person.

Requirement to file report

16.1. Every public officer who commits an act or omission that would otherwise constitute an offence shall, as soon as is feasible after the commission of the act or omission, file a written report with the Attorney General describing the act or omission.

Defence – use or threat of force

17. A person is not guilty of an offence if

- (a) they believe on reasonable grounds that force is being used against them or another person or that a threat of force is being made against them or another person;
- (b) the act that constitutes the offence is committed for the purpose of defending or protecting themselves or the other person from that use or threat of force; and
- (c) the act committed is reasonable in the circumstances.

17.1. In determining whether the act committed is reasonable in the circumstances, the court shall consider the relevant circumstances of the person, the other parties and the act, including, but not limited to, the following factors:

- (a) the nature of the force or threat;
- (b) the extent to which the use of force was imminent and whether there were other means available to respond to the potential use of force;
- (c) the person's role in the incident;
- (d) whether any party to the incident used or threatened to use a weapon;
- (e) the nature, duration and history of any relationship between the parties to the incident, including any prior use or threat of force and the nature of that force or threat;
- (f) any history of interaction or communication between the parties to the incident;
- (g) the nature and proportionality of the person's response to the use or threat of force; and
- (h) whether the act committed was in response to a use or threat of force that the person knew was lawful.

Exception

17.2. This section does not apply if the force is used or threatened by another person for the purpose of doing something that they are required or authorized by law to do in the administration or enforcement of the law, unless the person who commits the act that constitutes the offence believes on reasonable grounds that the other person is acting unlawfully.

Defence of property

18. A person is not guilty of an offence if

- (a) they either believe on reasonable grounds that they are in peaceable possession of property or are acting under the authority of, or lawfully assisting, a person whom they believe on reasonable grounds is in peaceable possession of property;
- (b) they believe on reasonable grounds that another person
 - (i) is about to enter, is entering or has entered the property without being entitled by law to do so,
 - (ii) is about to take the property, is doing so or has just done so, or
 - (iii) is about to damage or destroy the property, or make it inoperative, or is doing so;

- (c) the act that constitutes the offence is committed for the purpose of
 - (i) preventing the other person from entering the property, or removing that person from the property, or
 - (ii) preventing the other person from taking, damaging or destroying the property or from making it inoperative, or retaking the property from that person; and
- (d) the act committed is reasonable in the circumstances.

Exception

18.1. This section does not apply if the other person is doing something that they are required or authorized by law to do in the administration or enforcement of the law, unless the person who commits the act that constitutes the offence believes on reasonable grounds that the other person is acting unlawfully.

Limitation

19. Nothing justifies the intentional or criminally negligent causing of death or bodily harm to another person or the wilful attempt in any manner to obstruct, pervert, or defeat the course of justice.

CRIMINAL PROCEDURE

Duty of person executing warrant

20. It is the duty of every one who executes a warrant, whether to search or to arrest, to have it with him or her and to produce it when requested to do so.

Duty of person arresting

21. It is the duty of every one who arrests a person, whether with or without a warrant, to give notice to that person of the reason for the arrest.

Arrest without a warrant

- 22.** A peace officer may arrest without warrant a person
- (a) who he or she finds committing a criminal offence;
 - (b) who, on reasonable grounds, he or she believes has committed a criminal offence; or
 - (c) who, on reasonable grounds, he or she believes is about to commit a criminal offence.

Right to a hearing

23. Where a peace officer arrests a person without a warrant and at the time of the arrest, a judge is presently available in-game to conduct an initial appearance, it is the duty of the peace officer

- (a) to give notice to the person being arrested of his or her right to a hearing before a judge; and
- (b) if the person being arrested chooses to exercise that right, to bring said person before a judge and have the arrest reviewed by said judge.

Initial appearance – mode of hearings

24. The arresting officer may present any information relating to the arrest and offences charged under oath or affirmation, or under the pains and penalties of perjury.

25. A determination of probable and reasonable grounds for arrest shall be made by a judge after consideration of any information presented by the arresting officer.

26. Initial appearances are ex parte proceedings, unless the judge otherwise orders.

Initial appearance – court orders

27. At an initial appearance, the court may

- (a)** authorise the arrest and booking, if it finds probable and reasonable grounds that the person arrested committed the offences charged; or
- (b)** order that the person arrested be released and dismiss the charges, if it does not find probable and reasonable grounds that the person arrested committed the offences charged.

No appeal

27.1. There is no appeal of any orders arising from an initial appearance.

Limitation

28. The limitation period that applies to offences and infractions under this enactment is as follows:

28.1. Prosecution for offences in Schedule A must commence within 60 days of the offence.

28.2. Prosecution for offences in Schedule B must commence within 45 days of the offence.

28.3. Prosecution for offences in Schedule C must commence within 30 days of the offence.

28.4. Prosecution for infractions in Schedule D must commence within 15 days of the infraction.

OFFENCES AGAINST PUBLIC ORDER

Treason

29. Every person commits *treason* who,

- (a)** levies war against the City of Vancouver or does any act preparatory thereto;
- (b)** assists an enemy at war with the City of Vancouver, or any armed forces against whom Canadian Forces are engaged in hostilities, whether or not a state of war exists between the City of Vancouver and the state whose forces they are;
- (c)** uses force or violence for the purpose of overthrowing the government of the City of Vancouver;
- (d)** without lawful authority, communicates or makes available to an agent of a government other than that of the City of Vancouver, any document of a military character that he or

she knows or ought to know may be used by that state for a purpose prejudicial to the safety or defence of the City of Vancouver;

- (e) conspires with any person to do anything mentioned above;
- (f) forms an intention to do anything mentioned above and manifests that intention by an overt act.

29.1. No person shall be arrested for this offence except when such an arrest has been authorized and ordered by a warrant.

29.2. Every person who commits *treason* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Intimidating government

30. Every person commits *intimidating government* who does an act of violence in order to intimidate the government of the City of Vancouver.

30.1. Every person who commits intimidating government is guilty of an indictable offence and liable to the punishment described in Schedule A

Sabotage

31. Every person commits *sabotage* who does a prohibited act for a purpose prejudicial to the safety, security or defence of the City of Vancouver.

31.1. A prohibited act is any act or omission that

- (a) impairs the efficiency or impedes the working of any vessel, vehicle, aircraft, machinery, apparatus or other thing; or
- (b) causes property, by whomever it may be owned, to be lost, damaged or destroyed.

31.2. Every person who commits *sabotage* is guilty of an indictable offence and liable to the punishment described in Schedule A.

31.3. No person may be arrested for sabotage except when such an arrest has been authorised and ordered by a warrant.

Sedition

32. Every person commits *sedition* who intends, expresses, or advocates the use, without the authority of law, of force as a means of accomplishing a governmental change within the City of Vancouver.

32.1. A person does not commit this offence by merely

- (a) showing that the government has been misled or mistaken in its measures;
- (b) pointing out errors or defects in
 - (i) the administration of justice,
 - (ii) the City Council or a legislature, or
 - (iii) the government or laws of the City of Vancouver;
- (c) procuring, by lawful means, the alteration of any matter of government in the City of Vancouver;

32.2. No person shall be arrested for this offence except when such an arrest has been authorized and ordered by a warrant.

32.3. Every person who commits *sedition* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Unlawful assembly

33. An unlawful assembly is an assembly of three or more persons who, with intent to carry out any common purpose, assemble **in such a manner or so conduct themselves when they are assembled as to cause persons in the area of the assembly to fear, on reasonable grounds, that they** with the intent to disturb the peace tumultuously or violently in a manner that is likely to cause public alarm.

(a) will disturb the peace tumultuously, or

(b) will by that assembly needlessly and without reasonable cause provoke other persons to disturb the peace tumultuously.

33.1. An otherwise unlawful assembly is lawful if the persons are assembled to protect the dwelling-house of any one of them against persons who are threatening to break and enter it for the purpose of committing an indictable offence therein.

33.2. A peace officer must give a lawful command to those he or she finds unlawfully assembled by directing them to disperse peaceably and then allow 10 minutes for those assembled to comply with said command.

33.3. Every person who takes part in an unlawful assembly and who refuses to disperse peaceably within 10 minutes of a lawful command by a peace officer to disperse commits *unlawful assembly*, is guilty of a summary offence, and liable to the punishment described in Schedule C.

Rioting

34. Every person commits *rioting* who takes part in an unlawful assembly that has begun to disturb the peace tumultuously or violently or endangers the public safety.

(a) that has begun to disturb the peace tumultuously or violently; or

(b) conceals their identity by hiding their username, and

(i) refuses to identify themselves when requested to do so by a peace officer.

34.1. Every person who commits *rioting* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Terrorism

35. Every person commits *terrorism* who commits an act or omission

(a) that is committed

(i) for a political, religious, or ideological purpose, objective or cause with the intention of

(1) intimidating the public, or a segment of the public with regard to its security, or

- (2) compelling a person or a government to do or to refrain from doing any act, and
- (b) that intentionally
 - (i) causes death or serious bodily harm to a person by the use of violence,
 - (ii) endangers a person's life,
 - (iii) causes a serious risk to the health or safety of the public or any segment of the public,
 - (iv) causes substantial property damage, whether to public or private property, or
 - (v) causes serious interference with or serious disruption of an essential service, facility or system, whether public or private, other than as a result of advocacy, protest, dissent or stoppage of work that is not intended to result in the conduct or harm referred to above

35.1. No person shall be arrested for this offence except when such an arrest has been authorized and ordered by a warrant.

35.2. Every person who commits *terrorism* is guilty of an indictable offence and liable to the punishment described in Schedule A.

OFFENCES INVOLVING FIREARMS AND OTHER WEAPONS

Mishandling explosives

36. Every person who has an explosive substance in his or her possession or under his or her care or control is under a legal duty to use reasonable care to prevent bodily harm or death to persons or damage to property by that explosive substance.

- 36.1.** Every person who fails without lawful excuse to perform said duty is guilty of,
- (a) if as a result an explosion of an explosive substance occurs that causes death to any person, *mishandling explosives causing death*, an indictable offence, and liable to the punishment described in Schedule A;
 - (b) if as a result an explosion of an explosive substance occurs that causes bodily harm to any person, *mishandling explosives causing bodily harm*, an indictable offence, and liable to the punishment described in Schedule A; or
 - (c) in any other case, *mishandling explosives*, an indictable offence, and liable to the punishment described in Schedule A.

Using explosives

- 37.** Every person commits *using explosives* who, without lawful excuse,
- (a) does anything with intent to cause an explosion of an explosive substance that is likely to cause serious bodily harm or death to persons or is likely to cause serious damage to property;
 - (b) with intent to do bodily harm to any person
 - (i) causes an explosive substance to explode,
 - (ii) sends or delivers to a person or causes a person to take or receive an explosive substance or any other dangerous substance or thing, or

- (iii) places or throws anywhere or at or on a person a corrosive fluid, explosive substance or any other dangerous substance or thing;
- (c) with intent to destroy or damage property without lawful excuse, places or throws an explosive substance anywhere; or
- (d) makes or has in his or her possession or has under his or her care or control any explosive substance with intent thereby
 - (i) to endanger life or to cause serious damage to property, or
 - (ii) to enable another person to endanger life or to cause serious damage to property.

37.1. Every person who commits *using explosives* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Possession of explosives

38. Every person commits *possession of explosives* who, without lawful excuse, makes or has in their possession or under their care or control any explosive substance.

38.1. Every person who commits *possession of explosives* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Careless use of firearm

39. Every person commits *careless use of a firearm* who, without lawful excuse, uses, carries, handles, ships, transports, or stores a firearm or any ammunition without exercising due regard for the safety of other persons that would be expected of a reasonable person or that a reasonable person ought to know.

39.1. Every person who commits *careless use of a firearm* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Pointing a firearm

40. Every person commits *pointing a firearm* who, without lawful excuse, intentionally, and for a sustained period of time, points a firearm or imitation firearm at another person, whether the firearm is loaded or unloaded.

40.1. A person does not commit this offence who points an imitation firearm at a place that is designated as or ostensibly appears to be an airsoft field or park.

40.2. Every person who commits *pointing a firearm* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Possession of weapon for dangerous purpose

41. Every person commits *possession of weapon for dangerous purpose* who carries or possesses a weapon, an imitation of a weapon, or any ammunition for a purpose dangerous to the public peace or for the purpose of committing an offence.

41.1. Every person who commits *possession of weapon for dangerous purpose* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Unauthorized possession of a firearm

42. Every person commits *unauthorized possession of a firearm* who possesses a non-restricted firearm listed in Schedule E, or any other firearm not provided in an enactment, without being the holder of a valid possession and acquisition licence under which the person may possess it.

42.1. An on-duty peace officer who comes into possession of a non-restricted firearm, or any other firearm not provided in an enactment, during the course of his or her lawful duties without being the holder of a valid possession and acquisition license does not commit this offence if he or she lawfully disposes of it where it is feasible to do so.

42.2. Every person who commits *unauthorized possession of a firearm* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Unauthorized possession of a restricted firearm

43. Every person commits *unauthorized possession of a restricted firearm* who possesses a restricted firearm listed in Schedule F without being an on-duty peace officer.

43.1. Every person who commits *unauthorized possession of a restricted firearm* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Unauthorized possession of a prohibited firearm

44. Every person commits *unauthorized possession of a prohibited firearm* who possesses a prohibited firearm listed in Schedule G.

44.1. An on-duty peace officer who comes into possession of a prohibited firearm during the course of his or her lawful duties does not commit this offence if he or she lawfully disposes of it where it is feasible to do so.

44.2. Every person who commits *unauthorized possession of a prohibited firearm* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Unauthorized possession of ammunition

45. Every person commits *unauthorized possession of ammunition* who possesses any ammunition listed in Schedule H without being the holder of a valid possession and acquisition licence under which the person may possess it.

45.1. An on-duty peace officer who comes into possession of any ammunition during the course of his or her lawful duties does not commit this offence if he or she lawfully disposes of it where it is feasible to do so.

45.2. Every person who commits *unauthorized possession of ammunition* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Possession contrary to order

46. Every person commits *possession contrary to order* who possesses any firearm, ammunition, or explosive substance while the person is prohibited from doing so by a court order.

46.1. Every person who commits *possession contrary to order* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Possession of weapon at unauthorized place

47. Every person who is not a peace officer commits *possession of weapon at unauthorized place* who possesses weapon, including a firearm or an imitation firearm, at

- (a) an embassy,
- (b) a courthouse,
- (c) the city hall,
- (d) a voting place,
- (e) a place of worship,
- (f) an airport, or
- (g) a military installation,

provided that a peace officer had directed the person to securely store the weapon, to which the person refused, and after which the person re-entered a place described above while still in possession of a weapon.

47.1. Every person who commits *possession of weapon at unauthorized place* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Firearms trafficking

48. Every person who gives, sells, or transfers a firearm to another knowing that the other person is not authorized to possess said firearm is guilty of,

- (a) where the person is a peace officer and the other person is not, *aggravated firearms trafficking*, an indictable offence, and liable to the punishment described in Schedule A;
- (b) where the firearm is one listed in Schedule F or Schedule G, *aggravated firearms trafficking*, an indictable offence, and liable to the punishment described in Schedule A;
- (c) where the firearm is one listed in Schedule E, *firearms trafficking*, a hybrid offence, and liable to the punishment described in Schedule B; or
- (d) in any other case, *firearms trafficking*, a hybrid offence, and liable to the punishment described in Schedule B.

OFFENCES OF CORRUPTION AND DISOBEDIENCE

Bribery in judicial proceedings

49. Every person commits *bribery in judicial proceedings* who,

- (a) where the person is a judge, justice, master or justice of the peace, directly or indirectly, accepts, obtains or agrees to accept or attempts to obtain, money or any other form of personal inducement in respect to an official action taken or not taken in their official capacity;
- (b) where the person is a witness in a judicial proceeding, directly or indirectly, accepts, obtains, or agrees to accept or attempts to obtain, money or any other personal inducement in respect to testimony or other sworn statements of the witness;
- (c) where the person is a juror in a judicial proceeding, directly or indirectly, accepts, obtains, or agrees to accept or attempts to obtain, money or any other personal inducement in respect to the judicial function of the juror;

- (d) corruptly gives, offers, procures, or causes to be given, offered or procured to any judge, justice, master or justice of the peace, money or any other form of personal inducement in respect to an official action taken or not taken in their official capacity
- (e) corruptly gives, offers, procures, or causes to be given, offered or procured to any witness, money or any other form of personal inducement in respect to testimony or other sworn statements of the witness; or
- (f) corruptly gives, offers, procures, or causes to be given, offered or procured to any witness, money or any other form of personal inducement in respect to the judicial function of the juror.

49.1. No person shall be arrested for this offence except when such an arrest has been authorized and ordered by a warrant.

49.2. Every person who commits *bribery in judicial proceedings* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Bribery of officers

50. Every person commits *bribery of officers* who,

- (a) being a judge, peace officer, official, or being employed in the administration of criminal law, directly or indirectly, corruptly accepts, obtains, agrees to accept or attempts to obtain, for themselves or another person, any money, valuable consideration, office, place, or employment with intent
 - (i) to interfere with the administration of justice,
 - (ii) to procure or facilitate the commission of an offence, or
 - (iii) to protect from detection or punishment a person who has committed or who intends to commit an offence; or
- (b) directly or indirectly, corruptly gives or offers to a person mentioned in paragraph (a), or to anyone for the benefit of that person, any money, valuable consideration, office, place, or employment with intent that the person should do anything mentioned above.

50.1. No person shall be arrested for this offence except when such an arrest has been authorized and ordered by a warrant.

50.2. Every person who commits *bribery of officers* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Frauds on the government

51. Every person commits *frauds on the government* who

- (a) directly or indirectly
 - (i) gives, offers, agrees to give, or agrees to offer to an official or peace officer or to any one for the benefit of an official or peace officer, or
 - (ii) being an official or peace officer, demands, accepts, gives, offers, or agrees to accept from any person for himself or herself or another person,

a loan, reward, advantage, or benefit of a fraudulent nature or that for a fraudulent purpose.

51.1. Every person who commits *frauds on the government* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Breach of trust

52. Every person commits *breach of trust* who,

- (a) in the case of an official, in connection with their office, commits fraud or a breach of trust against their office or the government;
- (b) in the case of a peace officer, in connection with their duty, commits fraud or a breach of trust against their duty or the government; or
- (c) in the case of a private person, in connection with their employment, commits fraud or a breach of trust against their employer.

52.1. Every person who commits *breach of trust* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Corruption

53. Every person commits *corruption* who directly or indirectly gives, offers, agrees to give, or agrees to offer to a government official or to anyone for the benefit of a government official; or, being a government official, directly or indirectly demands, accepts or offers or agrees to accept from any person for themselves or another person a loan, reward, advantage or benefit of any kind as consideration for the government official

- (a) to abstain from voting at a meeting of the City Council or a committee thereof;
- (b) to vote in favour of or against a measure, motion or resolution;
- (c) to aid in procuring or preventing the adoption of a measure, motion or resolution; or
- (d) to perform or fail to perform an official act.

53.1. Every person who commits *corruption* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

OFFENCES AGAINST THE ADMINISTRATION OF LAW AND JUSTICE

Disobeying a statute

54. Every person who, without lawful excuse, contravenes an enactment by intentionally doing anything that it forbids or by intentionally omitting to do anything that it requires to be done is, unless a punishment is expressly provided by law, guilty of *disobeying a statute*.

54.1. Every person who commits *disobeying a statute* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Disobeying order of court

55. Every person who, without lawful excuse, disobeys a lawful order made by a court or judge is, unless a punishment or other mode of proceeding is expressly provided by law, guilty of *disobeying order of court*.

55.1. The common law powers and any powers prescribed in the *Vancouver Charter* of judges to punish for contempt of court are not affected by this section.

55.2. No person shall be arrested for this offence except when such an arrest has been authorized and ordered by a warrant or pre-authorized by a judge.

55.3. Every person who commits *disobeying order of court* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Misconduct of officers

56. Every peace officer or official is guilty *misconduct of officers* who, being entrusted with the execution of a duty or process, intentionally

- (a) misconducts himself or herself in the execution of the duty or process,
- (b) refuses to execute the duty or process, or
- (c) makes a false return to the duty or process.

56.1. Every person who commits *misconduct of officers* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Obstruction of a peace officer

57. Every person commits *obstruction of a peace officer* who resists or wilfully obstructs a peace officer in the execution of his or her duty or any person lawfully acting in aid of such an officer.

57.1. Without limiting the generality of this section, obstruction includes

- (a) failing to comply with a lawful order of a peace officer;
- (b) failing to accept delivery or acknowledge delivery of a summons, notice of appearance, undertaking, ticket, notice of contravention, or other thing which the peace officer had a duty to deliver to that person;
- (c) in the case of the operator of a conveyance, failing to identify upon the request of a peace officer;
- (d) being wilfully blind to anything mentioned above; and
- (e) resisting, fleeing, or attempting to resist or flee when lawfully detained by a peace officer.

57.2. Every person who commits *obstruction of a peace officer* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Personating officers

58. Every person is deemed to be personating officers who

- (a) falsely represents himself or herself to be a peace officer;
- (b) falsely represents himself or herself to be an official or government official; or
- (c) not being a peace officer or an official, uses a badge, article of uniform, or equipment in a manner that is likely to cause persons to believe that he or she is a peace officer, official, or government official, as the case may be.

58.1. Every person who personates officers is guilty of,

- (a) where the person personated a peace officer, official, or government official, as the case may be, for the purpose of facilitating the commission of another

offence, *aggravated personating officers*, a hybrid offence, and liable to the punishment described in Schedule B.

(b) in any other case, *personating officers*, a hybrid offence, and liable to the punishment described in Schedule B.

Personating security

59. Every person commits *personating security* who, not being authorized to act as a security under the *Private Security Officer By-law*,

- (a) falsely represents himself or herself to be a security;
- (b) acts, functions, or conducts himself or herself in a manner a security would that is likely to cause persons to believe that he or she is a security; or
- (c) uses a badge, article of uniform, or equipment in a manner that is likely to cause persons to believe that he or she is a security.

59.1. Every person who commits *personating security* is guilty of a summary offence and liable to the punishment described in Schedule C.

Perjury

60. Every person commits *perjury* who, with intent to mislead, makes a false statement knowing that the statement is false under oath or solemn affirmation, by affidavit, in a solemn declaration, in a deposition, or in a judicial proceeding.

60.1. No person shall be arrested for this offence except when such an arrest has been authorized and ordered by a warrant.

60.2. Every person who commits *perjury* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Fabricating evidence

61. Every person commits *fabricating evidence* who, with intent to mislead, fabricates anything with intent that it shall be used as evidence in a judicial proceeding.

61.1. No person shall be arrested for this offence except when such an arrest has been authorized and ordered by a warrant.

61.2. Every person who commits *fabricating evidence* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Obstructing Obstruction of justice

62. Every person commits *obstructing obstruction of justice* who wilfully attempts in any manner to obstruct, pervert, or defeat the course of justice in a judicial proceeding, including by

- (a) dissuading or attempting to dissuade a person by threats, bribes, or other corrupt means from giving evidence;
- (b) influencing or attempting to influence by threats, bribes, or other corrupt means a person in his or her conduct as a juror; or
- (c) accepting, obtaining, agreeing to accept, or attempting to obtain a bribe or other corrupt consideration to abstain from giving evidence, or to do or to refrain from doing anything as a juror.

62.1. Every person who commits *obstructing obstruction of justice* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Public mischief

63. Every person commits *public mischief* who, with intent to mislead, causes a peace officer to enter on or continue an investigation, including by

- (a) making a false statement that accuses some other person of having committed an offence;
- (b) doing anything intended to cause some other person to be suspected of having committed an offence that the other person has not committed, or to divert suspicion from himself or herself;
- (c) reporting that an offence has been committed when it has not been committed; or
- (d) reporting or in any other way making it known or causing it to be made known that he or she or some other person had been victim to an offence when he or she or that other person had not been victim to an offence.

63.1. Every person who commits *public mischief* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Concealment of offence

64. Every person commits *concealment of offence* who asks for, obtains, agrees to receive, or agrees to obtain any valuable consideration for themselves or any other person by agreeing to conceal an offence committed.

64.1. No person commits this offence by giving or receiving valuable consideration in relation to victim compensation, restitution, or diversion programs with the consent of the Attorney General.

64.2. Every person who commits *concealment of offence* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Prison breach

65. Every person commits *prison breach* who,

- (a) by force or violence breaks a prison with intent to set at liberty himself or herself or any other person confined therein, or
- (b) with intent to escape, forcibly breaks out of, or makes any breach in, a cell or other place within a prison in which he or she is confined.

65.1. Every person who commits *prison breach* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Escape without excuse

66. Every person commits *escape without excuse* who escapes from lawful custody or who is, before the expiration of a term of imprisonment to which they were sentenced, at large without lawful excuse.

66.1. Every person who commits *escape without excuse* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Failure to attend court

67. Every person commits *failure to attend court* who,

- (a) is at large on a release order and who fails, without lawful excuse, to attend court in accordance with the release order;
- (b) having appeared before a court or justice, fails, without lawful excuse, to subsequently attend court as required by the court or judge;
- (c) fails to surrender themselves in accordance with an order of the court or judge, as the case may be;
- (d) is named in an appearance notice and who fails, without lawful excuse, to appear at the time and place stated in the notice of appearance;
- (e) is served with a summons and who fails, without lawful excuse, to appear at the time and place stated in the summons; or
- (f) is named in an appearance notice or served with a summons, as the case may be, and who fails, without lawful excuse, to attend court in accordance with a notice of appearance or summons, as the case may be.

67.1. Every person who commits *failure to attend court* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Failure to comply with undertaking

68. Every person commits *failure to comply with undertaking* who is at large on an undertaking and who fails, without lawful excuse,

- (a) to comply with a condition of that undertaking; or
- (b) to attend court in accordance with that undertaking;

68.1. Every person who commits *failure to comply with undertaking* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Assisting or negligently permitting escape

69. Every person commits *assisting or negligently permitting escape* who,

- (a) permits a person whom he or she has in lawful custody to escape, by failing to perform a legal duty;
- (b) conveys or causes to be conveyed into a place of detention anything, with intent to facilitate the escape of a person in lawful custody therein; or
- (c) directs or procures, under colour of pretended authority, the release of a person in lawful custody who is not entitled to be discharged.

69.1. Every person who commits *assisting or negligently permitting escape* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Rescue or wilfully permitting escape

70. Every person commits *rescue or wilfully permitting escape* who,

- (a) rescues any person from lawful custody or assists any person in escaping or attempting to escape from lawful custody,
- (b) being a peace officer, wilfully permits a person in his or her lawful custody to escape, or

- (c) being an officer of or an employee in a prison, wilfully permits a person to escape from lawful custody therein.

70.1. Every person who commits *rescue or wilfully permitting escape* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Fail to pay fine

71. Every person fails to pay a fine who, having been issued a fine by a peace officer, a court, or a judge, fails to pay the amount owed within 30 days of the issuing date of the fine.

71.1. Every person who fails to pay a fine is guilty of,

- (a) if the amount outstanding exceeds \$5000, *fail to pay exceeding fine*, a hybrid offence and liable to the punishment described in Schedule B; or
- (b) if the amount outstanding does not exceed \$5000, *fail to pay fine*, a summary offence and liable to the punishment described in Schedule C.

71.2. Any amount that is in dispute is to be subtracted when calculating the amount outstanding.

71.3. An amount is deemed to be in dispute if the person has

- (a) submitted a dispute in writing to the issuing authority; or
- (b) filed a civil action in court.

OFFENCES RELATING TO DISORDERLY CONDUCT

Disorderly conduct

72. Every person commits *disorderly conduct* who, in a public place, acts in such a way that he or she knows or ought to know is likely to offend against public decency or order.

72.1. Every person who commits *disorderly conduct* is guilty of a summary offence and liable to the punishment described in Schedule C.

Causing disturbance

73. Every person commits *causing disturbance* who, in a public place,

- (a) causes a disturbance by
 - (i) fighting,
 - (ii) screaming,
 - (iii) shouting,
 - (iv) being drunk,
 - (v) impeding or harassing other persons, or
 - (vi) using insults or obscene language;
- (b) loiters and in any way obstructs another person in that public place; or
- (c) disturbs the peace by
 - (i) discharging firearms, or
 - (ii) other disorderly conduct.

73.1. Every person who commits *causing disturbance* is guilty of a summary offence and liable to the punishment described in Schedule C.

Common nuisance

74. Every person commits *common nuisance* who

- (a) endangers the lives, safety, or health, property, or comfort of the public;
- (b) causes physical injury to any person; or
- (c) obstructs the public in the exercise or enjoyment of any right that is common to all persons.

74.1. Every person who commits *common nuisance* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

False alarm of fire

75. Every person commits *false alarm of fire* who wilfully, without reasonable cause, by outcry, ringing bells, using a fire alarm, telephone, or in any other manner, makes, circulates, or causes to be made or circulated an alarm of fire.

75.1. Every person who commits *false alarm of fire* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Interfering with roadside workers

76. Every person commits *interfering with roadside workers* who, knowing that a person is a roadside worker in the execution of his or her duties, obstructs, interferes with, impedes, disrupts, or endangers the worker in relation to his or her duties.

76.1. Every person who commits *interfering with roadside workers* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Interfering with rescue

77. Every person commits *interfering with rescue* who intentionally prevents or impedes, or who intentionally endeavours to prevent or impede,

- (a) the saving of persons stranded, abandoned, injured, or in distress; or
- (b) a person who attempts to do anything mentioned above.

77.1. Every person who commits *interfering with rescue* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Indignity of dead body

78. Every person commits *indignity of dead body* who improperly or indecently interferes with or offers any indignity to a dead human body or human remains, whether buried or not.

78.1. Every person who commits *indignity of dead body* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

OFFENCES AGAINST THE PERSON

Criminal negligence

- 79.** Every person is criminally negligent who
- (a) in doing anything, or
 - (b) in omitting to do anything that it is his or her duty to do as imposed by law,
- shows wanton or reckless disregard for the lives or safety of other persons.
- 79.1.** Every person who is criminally negligent and
- (a) causes death to another person, is guilty of *criminal negligence causing death*, an indictable offence and liable to the punishment described in Schedule A; or
 - (b) causes bodily harm to another person, is guilty of *criminal negligence causing bodily harm*, a hybrid offence and liable to the punishment described in Schedule B.

Homicide

- 80.** Every person commits homicide when, directly or indirectly, by any means, he or she causes the death of a human being.
- 80.1.** Homicide that is not culpable is not an offence.
- 80.2.** Every person commits culpable homicide when he or she causes the death of a human being,
- (a) by means of an unlawful act;
 - (b) by criminal negligence; or
 - (c) by causing that human being, by threats or fear of violence or by deception, to do anything that causes his or her death.

Murder

- 81.** Every person who commits culpable homicide commits murder
- (a) where the person who causes the death of a human being
 - (i) means to cause his or her death, or
 - (ii) means to cause him or her bodily harm that he or she knows is likely to cause his or her death, and is reckless whether death ensues or not;
 - (b) where a person, meaning to cause death to a human being or meaning to cause him or her bodily harm that he or she knows is likely to cause his or her death, and being reckless whether death ensues or not, by accident or mistake causes death to another human being, notwithstanding that he or she does not mean to cause death or bodily harm to that human being; or
 - (c) if a person, for an unlawful object, does anything that they know is likely to cause death, and by doing so causes the death of a human being, even if they desire to effect their object without causing death or bodily harm to any human being.
- 81.1.** Every person who commits murder commits *first degree murder* when

- (a) it is planned and deliberate;
- (b) the victim is a peace officer or other person employed for the preservation and maintenance of the public peace, acting in the course of his or her duties;
- (c) the death is caused by that person while committing or attempting to commit a forcible confinement; or
- (d) the death is caused by that person for the benefit of, at the direction of or in association with a criminal organization.

81.2. Every person who commits murder that is not *first degree murder* commits *second degree murder*.

81.3. Every person who commits *first degree murder* or *second degree murder* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Manslaughter

82. Culpable homicide that otherwise would be murder may be reduced to *manslaughter* if the person who committed it did so in the heat of passion caused by sudden provocation.

82.1. Conduct of the victim that would constitute an indictable offence under this enactment and that is of such a nature as to be sufficient to deprive an ordinary person of the power of self-control is provocation for the purposes of this section, if the accused acted on it on the sudden and before there was time for their passion to cool.

82.2. Every person who commits *manslaughter* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Attempted murder

83. Every person commits *attempted murder* who attempts by any means to commit murder

83.1. Every person who commits *attempted murder* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Accessory to murder

84. Every person commits *accessory to murder* who is an accessory after the fact to murder.

84.1. Every person who commits *accessory to murder* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Conspiracy to murder

85. Every person commits *conspiracy to murder* who conspires with any one to commit murder or to cause another person to be murdered.

85.1. Every person who commits *conspiracy to murder* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Discharging a firearm with intent to wound

86. Every person commits *discharging a firearm with intent to wound* who discharges a firearm at a person with intent to wound, maim or disfigure, to endanger the life of or to prevent

the arrest or detention of any person, whether or not that person is the one at whom the firearm is discharged.

86.1. Every person who commits *discharging a firearm with intent to wound* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Recklessly discharging a firearm

87. Every person commits *recklessly discharging a firearm* who

- (a) intentionally discharges a firearm into or at a building, structure, motor vehicle, aircraft, vessel, container, or trailer, knowing that or being reckless as to whether another person is present in that place; or
- (b) intentionally discharges a firearm while being reckless as to the life or safety of another person.

87.1. Every person who commits *recklessly discharging a firearm* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Criminal harassment

88. Every person commits *criminal harassment* who, without lawful authority, causes another person to reasonably and in the whole of the circumstances, fear for their safety or the safety of anyone known to them by

- (a) repeatedly following from place to place the other person or anyone known to them;
- (b) repeatedly communicating with, either directly or indirectly, the other person or anyone known to them;
- (c) watching the place where the other person, or anyone known to them, resides, works, or happens to be; or
- (d) engaging in threatening conduct directed at the other person or anyone known to them.

88.1. Every person who commits *criminal harassment* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Uttering threats

89. Every person commits *uttering threats* who, in any manner, knowingly utters, conveys or causes any person to receive a threat

- (a) to cause death or bodily harm to any person; or
- (b) to burn, destroy or damage real or personal property.

89.1. Every person who commits *uttering threats* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Assault

90. Every person commits an assault who

- (a) without the consent of another person, he or she applies force intentionally to that other person, directly or indirectly;

- (b) he attempts or threatens, by an act or a gesture, to apply force to another person, if he or she has, or causes that other person to believe on reasonable grounds that he or she has, present ability to effect his or her purpose; or
- (c) while openly wearing or carrying a weapon or an imitation thereof, he or she accosts or impedes another person or begs.

90.1. No consent is obtained where the victim submits or does not resist an assault.

90.2. Every person who commits an assault is guilty of,

- (a) where in committing an assault, the person carries, uses or threatens to use a weapon or an imitation thereof, *assault with a weapon*, a hybrid offence and liable to the punishment described in Schedule B;
- (b) where in committing an assault, the person causes bodily harm to the victim, *assault causing bodily harm*, a hybrid offence and liable to the punishment described in Schedule B;
- (c) where in committing an assault, the person uses or threatens to use a conveyance, *assault with conveyance*, a hybrid offence and liable to the punishment described in Schedule B; or
- (d) in all other cases, *assault*, a hybrid offence and liable to the punishment described in Schedule B.

Aggravated assault

91. Every person commits *aggravated assault* who wounds, maims, disfigures or endangers the life of the victim.

91.1. Every person who commits *aggravated assault* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Unlawfully causing bodily harm

92. Every person commits *unlawfully causing bodily harm* who unlawfully causes bodily harm to any person during the commission of another offence.

92.1. Every person who commits *unlawfully causing bodily harm* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Torture

93. Every official, or every person acting on behalf of an official, commits *torture* who commits any act or omission by which severe pain or suffering, whether physical or mental, is intentionally inflicted on a person

- (a) for a purpose including
 - (i) obtaining from the person or from a third person information or a statement,
 - (ii) punishing the person for an act that the person or a third person has committed or is suspected of having committed, and
 - (iii) intimidating or coercing the person or a third person, or
- (b) for any reason based on discrimination of any kind.

93.1. It is no defence to this offence

- (a) that the accused was ordered by a superior or a public authority to perform the act or omission; or
- (b) that the act or omission is alleged to have been justified by exceptional circumstances, including a state of war, a threat of war, internal political instability or any other public emergency.

93.2. For the purposes of this offence, “official” means

- (a) a peace officer,
- (b) a government official,
- (c) a member of the Canadian Forces, or
- (d) any person who may exercise powers, pursuant to a law in force in a foreign state, that would, in Vancouver, be exercised by a person referred to above.

93.3. Every person who commits *torture* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Assault of peace officer

94. Every person who commits an assault on a peace officer engaged in the execution of his or her duty or a person acting in aid of such an officer or on a person with intent to resist or prevent the lawful arrest or detention of himself or herself or another person is guilty of,

- (a) where in committing an assault on a peace officer, the person carries, uses or threatens to use a weapon or an imitation thereof, *assault peace officer with a weapon*, a hybrid offence and liable to the punishment described in Schedule B;
- (b) where in committing an assault on a peace officer, the person causes bodily harm to the peace officer, *assault peace officer causing bodily harm*, a hybrid offence and liable to the punishment described in Schedule B; or
- (c) in all other cases, *assault peace officer*, a hybrid offence and liable to the punishment described in Schedule B.

Aggravated assault of peace officer

95. Every person commits *aggravated assault of peace officer* who, in committing an assault on a peace officer, wounds, maims, disfigures or endangers the life of the peace officer.

95.1. Every person who commits *aggravated assault of peace officer* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Disarming a peace officer

96. Every person commits *disarming a peace officer* who, without the consent of a peace officer, takes or attempts to take a weapon that is in the possession of the peace officer when the peace officer is engaged in the execution of his or her duty.

96.1. Every person who commits *disarming a peace officer* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Kidnapping

97. Every person commits a kidnapping who kidnaps another person with intent

- (a) to cause the other person to be confined or imprisoned against the person’s will;

- (b) to cause the other person to be unlawfully sent or transported to any place against the person's will; or
- (c) to hold the other person for ransom or to service against the person's will.

97.1. Every person who commits a kidnapping is guilty of,

- (a) where the other person was a peace officer, official, or government official, *aggravated kidnapping*, an indictable offence and liable to the punishment described in Schedule A;
- (b) where the other person was subsequently taken hostage or exploited in any way for exchange of consideration, *aggravated kidnapping*, an indictable offence and liable to the punishment described in Schedule A;
- (c) where the person used any firearm in the commission of the offence, to *aggravated kidnapping*, an indictable offence and liable to the punishment described in Schedule A;
- (d) where the offence was committed for the benefit of, at the direction of, or in association with, a criminal organization, *aggravated kidnapping*, an indictable offence and liable to the punishment described in Schedule A; or
- (e) in any other case, *kidnapping*, an indictable offence and liable to the punishment described in Schedule A.

Forcible confinement

98. Every person commits *forcible confinement* who, without lawful authority, confines, imprisons, or forcibly seizes another person, or causes another person to be confined, imprisoned, or forcibly seized.

98.1. Every person who commits *forcible confinement* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

OFFENCES OF DEFAMATORY LIBEL

Publishing defamatory libel

99. Every person commits *publishing defamatory libel* who, without lawful justification or excuse, publishes any matter which is false that is likely to injure the reputation of any person by exposing him or her to hatred, contempt or ridicule, or that is designed to insult the person of or concerning whom it is published.

99.1. A person is deemed to publish a libel when he or she

- (a) exhibits it in public;
- (b) causes it to be read or seen; or
- (c) shows or delivers it, or causes it to be shown or delivered, with intent that it should be read or seen by any person other than the person whom it defames.

99.2. The proprietor of a newspaper shall be deemed to publish defamatory matter that is inserted and published therein, unless he or she proves that the defamatory matter was inserted in the newspaper without his knowledge and without negligence on his part.

99.3. No person shall be deemed to publish a defamatory libel by reason only that he or she publishes defamatory matter in a judicial proceeding, in an inquiry, to a commission, to City Council, to a committee, or under the authority of a public agency.

99.4. No person shall be deemed to publish a defamatory libel by reason only that he or she publishes defamatory matter that, on reasonable grounds, he or she believes is true, and that is relevant to any subject of public interest, the public discussion of which is for the public benefit.

99.5. No person shall be deemed to publish a defamatory libel by reason only that he or she publishes fair comments on the public conduct of a person who takes part in public affairs or anything public exhibited, if the comments are confined to criticism thereof.

99.6. No person shall be deemed to publish a defamatory libel where he or she proves that the publication of the defamatory matter in the manner in which it was published was for the public benefit at the time when it was published and that the matter itself was true.

99.7. No person shall be deemed to publish a defamatory libel by reason only that he or she publishes defamatory matter on the invitation or challenge of the person in respect of whom it is published or that it is necessary to publish in order to refute defamatory matter published in respect of him or her by another person.

99.8. No person shall be deemed to publish a defamatory libel by reason only that he or she publishes, in answer to inquiries made to him or her, defamatory matter relating to said inquiry.

99.9. No person shall be deemed to publish a defamatory libel by reason only that he or she publishes to another person defamatory matter for the purpose of giving relevant information in good faith to that person.

99.10. No person shall be deemed to publish a defamatory libel by reason only that he or she or she publishes defamatory matter in good faith for the purpose of seeking remedy or redress for a private or public wrong or grievance from a person who has, or who on reasonable grounds he or she believes has, the right or is under an obligation to remedy or redress the wrong or grievance.

99.11. Every person who commits *publishing defamatory libel* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Public incitement of hatred

100. Every person commits *public incitement of hatred* who, by communicating statements in any public place, incites hatred against any identifiable group where such incitement is likely to lead to a breach of the peace.

100.1. Every person who commits *public incitement of hatred* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

OFFENCES RELATING TO CONVEYANCES

Dangerous operation

101. Every person who operates a conveyance in a manner that, having regard to all of the circumstances, is dangerous to the public is guilty of,

- (a) if as result, causes the death of another person, *dangerous operation causing death*, an indictable offence and liable to the punishment described in Schedule A;
- (b) if as a result, causes bodily harm to another person, *dangerous operation causing bodily harm*, a hybrid offence and liable to the punishment described in Schedule B; or
- (c) in any other case, *dangerous operation*, a hybrid offence and liable to the punishment described in Schedule B.

Failure to stop after accident

102. Every person commits failure to stop after accident who operates a conveyance and who at the time of operating the conveyance knows that, or is reckless as to whether, the conveyance has been involved in an accident with a person or another conveyance and who fails, without reasonable excuse, to stop the conveyance, give their name and, if any person has been injured or appears to require assistance, offer assistance, is guilty of,

- (a) if the operator, at the time of committing the offence, knows that, or is reckless as to whether, the accident resulted in the death of another person or in bodily harm to another person whose death ensues, *failure to stop after accident involving death*, an indictable offence and liable to the punishment described in Schedule A;
- (b) if the operator, at the time of committing the offence knows that, or is reckless as to whether, the accident resulted in bodily harm to another person, *failure to stop after accident involving bodily harm*, a hybrid offence and liable to the punishment described in Schedule B; or
- (c) in any other case, *failure to stop after accident*, a hybrid offence and liable to the punishment described in Schedule B.

Flight from peace officer

103. Every person commits *flight from peace officer* who operates a motor vehicle or vessel while being pursued by a peace officer and who fails, without reasonable excuse, to stop the motor vehicle or vessel as soon as is reasonable in the circumstances.

103.1. Every person who commits *flight from peace officer* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Operating armoured vehicle unlicensed

104. Every person commits *operating armoured vehicle unlicensed* who operates an armoured vehicle without a valid armoured vehicle permit issued in the person's name by a Registrar of Armoured Vehicles.

104.1. A person may apply to a Registrar of Armoured Vehicles for an armoured vehicle permit, who may issue said permit for a period not exceeding 26 weeks if he or she is satisfied that all of the following conditions are met:

- (a) the applicant's conduct or character makes it adequate that he or she be authorized to operate an armoured vehicle;
- (b) the registrar considers that the applicant demonstrated a lawful purpose for operating an armoured vehicle;
- (c) the registrar considers that it is in the public interest for the applicant to operate an armoured vehicle;
- (d) the applicant is an active service member of the Canadian Forces, a peace officer, or a security; and
- (e) the applicant has not been convicted of a crime.

104.2. Every person who operates an armoured vehicle must produce, upon the request of any peace officer, a valid armoured vehicle permit issued in the person's name.

104.3. Every person who commits *operating armoured vehicle unlicensed* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Operating unsafe conveyance

105. Every person commits *operating unsafe conveyance* who operates a conveyance on any public roadway that

- (a) emits from its engine visible smoke;
- (b) has a pre-existing mechanical condition rendering it a hazard; or
- (c) has wear and tear rendering it a hazard.

105.1. Every person who commits *operating unsafe conveyance* is guilty of a summary offence and liable to the punishment described in Schedule C.

Operation while prohibited

106. Everyone commits *operation while prohibited* who operates a conveyance while prohibited from doing so

- (a) by order of a judge, court, or the Attorney General; or
- (b) by a driving prohibition.

106.1. Every person who commits *operation while prohibited* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Aggravating circumstances

107. In imposing a sentence for any offence relating to conveyances, a court shall consider, in addition to any other aggravating circumstances, the following:

- (a) the commission of the offence resulted in bodily harm to, or the death of, more than one person;
- (b) the offender was operating a motor vehicle in a race with at least one other motor vehicle or in a contest of speed, on roadway or in a public place;
- (c) the offender was operating a large motor vehicle; and
- (d) the offender was prohibited from operating the conveyance.

Driving prohibition

108. Every person who commits an offence relating to conveyances may be issued a driving prohibition, have their conveyance seized and impounded, or both, subject to this section.

108.1. On the person's first and second offences relating to conveyances, a peace officer may order that the person's conveyance be seized and impounded and no driving prohibition is to be issued.

108.2. On the person's third and subsequent offences relating to conveyances, a peace officer may order that the person's conveyance be seized and impounded and issue a driving prohibition for 1 day.

108.3. Regardless of any prior offences, if a person commits any indictable offences relating to conveyances, a peace officer may order that the person's conveyance be seized and impounded and issue a driving prohibition for 1 day.

108.4. A person who commits any offences relating to conveyances may be issued,

- (a) upon conviction by a judge or court, a driving prohibition of up to 90 days; and
- (b) upon the application of a peace officer to the Attorney General, a driving prohibition of up to 30 days.

OFFENCES RELATING TO PROPERTY AND FRAUDULENT TRANSACTIONS

Theft

109. Every one commits theft who fraudulently and without colour of right takes, or fraudulently and without colour of right converts to his use or to the use of another person, anything, whether animate or inanimate, with intent

- (a) to deprive, temporarily or absolutely, the owner of it, or a person who has a special property or interest in it, of the thing or of his property or interest in it;
- (b) to part with it under a condition with respect to its return that the person who parts with it may be unable to perform; or
- (c) to deal with it in such a manner that it cannot be restored in the condition in which it was at the time it was taken or converted.

109.1. A person commits theft when, with intent to steal anything, he or she moves it or causes it to move or to be moved, or begins to cause it to become movable.

109.2. A taking or conversion of anything may be fraudulent notwithstanding that it is effected without secrecy or attempt at concealment.

109.3. Every person who commits theft is guilty of,

- (a) if the value of what is stolen is more than \$5000, *theft over*, an indictable offence and liable to the punishment described in Schedule A;
- (b) if the property stolen is government or public property, regardless of value, *government property theft*, an indictable offence and liable to the punishment described in Schedule A;
- (c) if the value of what is stolen is not more than \$5000, *theft under*, a hybrid offence and liable to the punishment described in Schedule B; or

- (d) if the property stolen is a motor vehicle, regardless of value, *motor vehicle theft*, a hybrid offence and liable to the punishment described in Schedule B.

Fraudulent concealment

110. Every person commits *fraudulent concealment* who, for a fraudulent purpose, takes, obtains, removes, or conceals anything.

110.1. Every person who commits *fraudulent concealment* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Stopping conveyance with intent

111. Every person commits *stopping conveyance with intent* who stops any conveyance with intent to rob or search it, the operator of it, or a passenger seated in it.

111.1. Every person who commits *stopping conveyance with intent* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Robbery

112. Every person commits a robbery who

- (a) steals, and for the purpose of extorting whatever is stolen or to prevent or overcome resistance to the stealing, uses violence or threats of violence to a person or property;
- (b) steals from any person and, at the time he or she steals or immediately before or immediately thereafter, wounds, beats, strikes or uses any personal violence to that person;
- (c) steals from a bank, vault, safe, or deposit box;
- (d) assaults any person with intent to steal from him or her; or
- (e) steals from any person while armed with a weapon or imitation thereof.

112.1. Every person who commits a robbery is guilty of,

- (a) if any firearm is used in the commission of the offence, *aggravated robbery*, an indictable offence and liable to the punishment described in Schedule A;
- (b) if the robbery is committed for the benefit of, at the direction of, or in association with, a criminal organization, *aggravated robbery*, an indictable offence and liable to the punishment described in Schedule A;
- (c) if the property stolen is from a bank, vault, safe, or deposit box, *aggravated robbery*, an indictable offence and liable to the punishment described in Schedule A; or
- (d) in any other case, *robbery*, an indictable offence and liable to the punishment described in Schedule A.

Extortion

113. Every person commits *extortion* who, without reasonable justification or excuse and with intent to obtain anything, by threats, accusations, menaces, defamatory libel, or violence induces or attempts to induce any person, whether or not he or she is the person threatened, accused or menaced or to whom violence is shown, to do anything or cause anything to be done.

113.1. Every person who commits *extortion* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Break and enter

114. Every person commits a break and enter who

- (a) breaks and enters a place with intent to commit an indictable offence therein,
- (b) breaks and enters a place and commits an indictable offence therein, or
- (c) breaks out of a place after
 - (i) committing an indictable offence therein, or
 - (ii) entering the place with intent to commit an indictable offence therein.

114.1. Every person who commits a break and enter is guilty of,

- (a) if the offence is committed in relation to a dwelling-house, *break into dwelling house*, an indictable offence and liable to the punishment described in Schedule A.
- (b) if the offence is committed in relation to a place other than a dwelling-house, *break into non-dwelling house*, a hybrid offence and liable to the punishment described in Schedule B.

Unlawfully in a dwelling-house

115. Every person commits *unlawfully in a dwelling-house* who, without lawful excuse, enters or is in a dwelling-house with intent to commit an indictable offence in it.

115.1. Every person who commits *unlawfully in a dwelling-house* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Possession of break-in instruments

116. Every person commits *possession of break-in instruments* who, without lawful excuse, has in their possession any instrument suitable for the purpose of breaking into any place, motor vehicle, vault or safe knowing that the instrument has been used or is intended to be used for that purpose.

116.1. Every person who commits *possession of break-in instruments* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Disguise with intent

117. Every person commits *disguise with intent* who, with intent to commit an indictable offence, has their face masked or coloured or is otherwise disguised.

117.1. Every person who commits *disguise with intent* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Possession of property obtained by crime

118. Every person is in possession of property obtained by crime who has in his or her possession any property or thing or any proceeds of any property or thing knowing that all or part of the property or thing or of the proceeds was obtained by or derived directly or indirectly from an offence.

118.1. A peace officer or a person acting under the direction of a peace officer is not guilty of this offence by reason only that the peace officer or person possesses property or a thing or the proceeds of property or a thing mentioned in above for the purposes of an investigation or otherwise in the execution of the peace officer's duties.

118.2. Every person who is in possession of property obtained by crime is guilty of,

- (a) if the value of what is possessed is more than \$5000, *possession of exceeding property obtained by crime*, an indictable offence and liable to the punishment described in Schedule A;
- (b) if the property that is possessed is government or public property, regardless of value, *possession of exceeding property obtained by crime*, an indictable offence and liable to the punishment described in Schedule A;
- (c) if the value of what is possessed is not more than \$5000, *possession of property obtained by crime*, a hybrid offence and liable to the punishment described in Schedule B.

Trafficking property obtained by crime

119. Every person traffics property obtained by crime who traffics any property or thing or any proceeds of any property or thing knowing that all or part of the property, thing, or proceeds was obtained by or derived directly or indirectly from an offence.

119.1. Every person who traffics property obtained by crime is guilty of,

- (a) if the value of what is trafficked is more than \$5000, *trafficking exceeding property obtained by crime*, an indictable offence and liable to the punishment described in Schedule A;
- (b) if the property that is trafficked is government or public property, regardless of value, *trafficking exceeding property obtained by crime*, an indictable offence and liable to the punishment described in Schedule A;
- (c) if the value of what is trafficked is not more than \$5000, *trafficking property obtained by crime*, a hybrid offence and liable to the punishment described in Schedule B.

Forgery

120. Every person commits *forgery* who makes, uses, or acts on a false document, knowing it to be false, with intent

- (a) that it should in any way be used or acted on as genuine, to the prejudice of any one; or
- (b) that a person should be induced, by the belief that it is genuine, to do or to refrain from doing anything.

120.1. Making a false document includes altering a genuine document in any material part.

120.2. Forgery is complete notwithstanding that the false document is incomplete or does not purport to be a document that is binding in law, if it is such as to indicate that it was intended to be acted on as genuine.

120.3. Every person who commits *forgery* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Fraud

121. Every person commits *fraud* who, by deceit, falsehood or other fraudulent means, defrauds the public or any person, whether ascertained or not, of any property, money, or service.

121.1. Every person who commits *fraud* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Intimidation

122. Every person commits intimidation who, wrongfully and without lawful authority, for the purpose of compelling another person to abstain from doing anything that he or she has a lawful right to do, or to do anything that he or she has a lawful right to abstain from doing,

- (a) uses violence or threats of violence to that person;
- (b) injures that person's property; or
- (c) persistently follows that person.

122.1. Every person who commits intimidation is guilty of,

- (a) where the conduct is intended to provoke a state of fear in
 - (i) a group of persons or the general public in order to impede the administration of criminal justice,
 - (ii) a justice system participant in order to impede him or her in the performance of his or her duties,
 - (iii) a person in order to impede them from obtaining health services from a health professional,
 - (iv) a health professional in order to impede them in the performance of their duties,
 - (v) a person, whose functions are to assist a health professional in the performance of the health professional's duties, in order to impede that person in the performance of those functions

aggravated intimidation, an indictable offence and liable to the punishment described in Schedule A; or

- (b) in any other case, *intimidation*, a hybrid offence and liable to the punishment described in Schedule B.

Mischiefs

123. Every person commits mischief who wilfully

- (a) destroys or damages property;
- (b) renders property dangerous, useless, inoperative or ineffective;
- (c) obstructs, interrupts or interferes with the lawful use, enjoyment or operation of property; or
- (d) obstructs, interrupts or interferes with any person in the lawful use, enjoyment or operation of property.

123.1. Every person who commits mischief is guilty of,

- (a) if the mischief causes actual danger to life, *mischief endangering life*, an indictable offence and liable to the punishment described in Schedule A;
- (b) if the mischief is committed in relation to property with a value which exceeds \$5000, *mischief of exceeding value*, an indictable offence and liable to the punishment described in Schedule A; or
- (c) if the mischief is committed in relation to property with a value which does not exceed \$5000, *mischief*, a hybrid offence and liable to the punishment described in Schedule B.

Arsons

124. Every person commits an arson who intentionally or recklessly causes damage by fire or explosion to property, whether or not that person owns the property.

124.1. Every person who commits an arson is guilty of,

- (a) where the person knows that or is reckless with respect to whether the property is inhabited or occupied, *aggravated arson*, an indictable offence and liable to the punishment described in Schedule A;
- (b) where the fire or explosion causes bodily harm to another person, *aggravated arson*, an indictable offence and liable to the punishment described in Schedule A;
- (c) where person intended to defraud any other person, *aggravated arson*, an indictable offence and liable to the punishment described in Schedule A; or
- (d) in any other case, *arson*, an indictable offence and liable to the punishment described in Schedule A.

Arson by negligence

125. Every person commits *arson by negligence* who owns or controls property and who, as a result of a marked departure from the standard of care that a reasonably prudent person would use to prevent or control the spread of fires or to prevent explosions, is a cause of a fire or explosion in that property that causes bodily harm to another person or damage to property.

125.1. Every person who commits *arson by negligence* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Trespassing

126. Every person commits *trespassing* if he or she enters land or property without the consent of its owner and

- (a) a sign prohibiting trespass was posted and clearly visible at each ordinary access to the land or property;
- (b) refuses to leave the land or property upon request by the owner of the land or property or a peace officer at the direction of the owner; or
- (c) continues to trespass or enter the land or property, having been notified by the owner of the land or property or a peace officer at the direction of the owner to quit the land.

126.1. For the purposes of this offence, land and property includes land and property of the government, except for land or property which is a public space.

126.2. A land or property is deemed to be a public space if there is no sign prohibiting trespass and

- (a) it is not enclosed by a fence,
- (b) it does not belong to any private person, or
- (c) it is not the land or property of the interior of a building.

126.3. The owner of land or property may authorize any person to act on the owner's behalf for the purposes of enforcing trespass.

126.4. Every person who commits *trespassing* is guilty of a summary offence and liable to the punishment described in Schedule C.

OFFENCES INVOLVING REGULATORY STATUTES AND AUTHORITIES

Practice without license

127. Every person commits *practice without license* who,

- (a) practices professional medical care without a valid license or permit to do so issued under the authority of Vancouver Coastal Health; or
- (b) practices law without a valid license or permit to do so issued under the authority of the Law Society of British Columbia or a judge.

127.1. A person does not commit this offence who administers any sort of medical care, despite not being licensed, if the person is assisting, in good faith, another person or himself or herself in dire need of such care, and such care is reasonably within the ability of that person.

127.2. A person does not commit this offence who tenders general legal advice that does not amount to practicing law.

127.3. Every person who commits *practice without license* is guilty of a summary offence and liable to the punishment described in Schedule C.

Doing business unlicensed

128. Every person commits *doing business unlicensed* who conducts business for himself or herself, a group, or an organization without a valid license or permit to do so issued under the authority of the City of Vancouver.

128.1. For the purposes of this offence, to conduct business means to sell goods or services for profit.

128.2. Every person who commits *doing business unlicensed* is guilty of a summary offence and liable to the punishment described in Schedule C.

Mishandling information

129. Every person mishandles information who, having in his or her possession or control any photograph, record, document, article, note, or information that is currently protected or classified under the authority of the *Security of Information Act*,

- (a) communicates it, directly or indirectly, to in any other manner to anyone not authorized to receive said information;
- (b) reproduces, shares, or distributes it without lawful authority; or
- (c) causes it to be communicated to anyone not authorized to receive said information.

129.1. Every person who mishandles information is guilty of,

- (a) where the mishandling is mostly attributed to recklessness or the mishandling was wilful, *aggravated mishandling information*, an indictable offence and liable to the punishment described in Schedule A;
- (b) where the mishandling is mostly attributed to negligence or the lack of due diligence, *mishandling information*, a hybrid offence and liable to the punishment described in Schedule B; or
- (c) in any other case, *mishandling information*, a hybrid offence and liable to the punishment described in Schedule B.

129.2. No person shall be arrested for *aggravated mishandling information* except when such an arrest has been authorized and ordered by a warrant.

Wrongful possession of information

130. Every person commits *wrongful possession of information* who has in his or her possession or control any photograph, record, document, article, note, or information that

- (a) is currently protected or classified under the authority of the *Security of Information Act*;
- (b) the person is not authorized to possess, see, or retain said information; and
- (c) the person knows, ought to know, believes, or has reasonable grounds to believe that the person is not authorized to possess, see, or retain said information.

130.1. A person does not commit this offence who, at the earliest opportunity after coming into possession of information referred to in paragraphs (a), (b), or (c), he or she notifies the Attorney General, returns said information, and destroys any copies of said information remaining in his or her possession.

130.2. Every person who commits *wrongful possession of information* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

OFFENCES OF ATTEMPTS, ACCESSORIES, AND CONSPIRACIES

Attempt indictable offence

131. Every person commits *attempt indictable offence* who attempts to commit an indictable offence.

131.1. Every person who commits *attempt indictable offence* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Accessory to indictable offence

132. Every person commits *accessory to indictable offence* who is an accessory after the fact to the commission of an indictable offence.

132.1. Every person who commits *accessory to indictable offence* is guilty of an indictable offence and liable to the punishment described in Schedule A.

Attempt hybrid offence

133. Every person commits *attempt hybrid offence* who attempts to commit a hybrid offence.

133.1. Every person who commits *attempt hybrid offence* is guilty of an hybrid offence and liable to the punishment described in Schedule B.

Accessory to hybrid offence

134. Every person commits *accessory to hybrid offence* who is an accessory after the fact to the commission of a hybrid offence.

134.1. Every person who commits *accessory to hybrid offence* is guilty of a hybrid offence and liable to the punishment described in Schedule B.

Attempt summary offence

135. Every person commits *attempt summary offence* who attempts to commit a summary offence.

135.1. Every person who commits *attempt summary offence* is guilty of a summary offence and liable to the punishment described in Schedule C.

Accessory to summary offence

136. Every person commits *accessory to summary offence* who is an accessory after the fact to the commission of a summary offence.

136.1. Every person who commits *accessory to summary offence* is guilty of a summary offence and liable to the punishment described in Schedule C.

Conspiracies

137. Every person who conspires with any person to commit an offence which is not murder is guilty of,

- (a) if the offence is an indictable offence, *conspiracy to indictable offence*, an indictable offence and liable to the punishment described in Schedule A;
- (b) if the offence is a hybrid offence, *conspiracy to hybrid offence*, a hybrid offence and liable to the punishment described in Schedule B; or
- (c) if the offence is a summary offence, *conspiracy to summary offence*, a summary offence and liable to the punishment described in Schedule C.

Participation in criminal organization

138. Every person commits *participation in criminal organization* who, for the purpose of enhancing the ability of a criminal organization to facilitate or commit an indictable offence,

- (a) knowingly, by act or omission, participates in or contributes to any activity of the criminal organization; or
- (b) recruits, solicits, encourages, coerces or invites a person to join the criminal organization.

138.1. Every person who commits *participation in criminal organization* is guilty of an indictable offence and liable to the punishment described in Schedule A;

TRAFFIC REGULATIONS

Traffic infractions not criminal offence

139. Traffic infractions are to be not deemed summary offences.

Exemption for emergency vehicles

140. A driver of an emergency vehicle may

- (a) exceed the speed limit;
- (b) park, stop, or stand where it is otherwise prohibited;
- (c) proceed past a red traffic control signal or stop sign without stopping; and
- (d) disregard rules and traffic control devices governing direction of movement or turning in specified directions.

Peace officer may move vehicle

141. If a vehicle is in a position that

- (a) causes it to interfere with the normal flow of traffic on the roadway, or
- (b) is unlawful,

a peace officer may

- (c) require the driver or person in charge of the vehicle to move it, or
- (d) move the vehicle and cause it to be taken to a safe and otherwise suitable place.

Speed limits

142. The applicable speed limit for any segment of roadway is that which is posted on a speed limit sign on that segment of roadway. If there is no posted speed limit the applicable speed limit is,

- (a) on a lane anywhere, 20 km/h;
- (b) in playground and school zones anywhere, 30 km/h;
- (c) in the City of Vancouver, 50 km/h; and
- (d) elsewhere, 80 km/h.

Violation tickets

143. Every person who contravenes any section of traffic regulations is liable to the punishment described in Schedule D which matches the heading that describes the section giving rise to said contravention.

Fail Failure to remain at scene of accident

144. The driver or operator or any other person in charge of a vehicle that is, directly or indirectly, involved in an accident must remain at or immediately return to the scene of the accident and render all reasonable assistance.

Fail Failure to stop for police

145. A peace officer may require the driver of a motor vehicle to stop and the driver of a motor vehicle, when signalled or requested to stop by a peace officer who is readily identifiable as a peace officer, must immediately come to a safe stop.

Fail Failure to state name identify

146. When requested by a peace officer, the driver of a motor vehicle or the person in charge of a motor vehicle must state correctly his or her name.

Unsafe driving of official vehicle

147. Roadside workers driving an official vehicle with red, blue, white, or amber lights must drive with due regard for safety, having regard to all the circumstances, including the nature, condition and use of the road and the amount of traffic that is, or might reasonably be expected to be, on it.

Fail Failure to obey police direction

148. If a peace officer reasonably considers it necessary to

- (a) ensure orderly movement of traffic,
- (b) prevent injury or damage to persons or property, or
- (c) permit proper action in an emergency,

the peace officer may direct traffic according to his or her discretion, and everyone must obey his or her directions.

Fail Failure to obey traffic control device

149. Unless otherwise directed by a peace officer or a person authorized by a peace officer to direct traffic, every driver of a vehicle and every pedestrian must obey the instructions of an applicable traffic control device.

Fail Failure to yield to pedestrian at intersection

150. When a green light is exhibited by a traffic control signal, the driver of a vehicle facing the green light must yield the right of way to pedestrians lawfully in the intersection before causing the vehicle to proceed into the intersection.

Fail Failure to yield to vehicle

151. When a green light is exhibited by a traffic control signal, the driver of a vehicle facing the green light must yield the right of way to vehicles lawfully in the intersection before causing the vehicle to proceed into the intersection.

Fail Failure to stop for yellow light

152. When a yellow light is exhibited by a traffic control signal, the driver of a vehicle approaching the signal must cause it to stop before entering the intersection unless the stop cannot be made safely.

Fail Failure to stop for red light

153. When a red light is exhibited by a traffic control signal, the driver of a vehicle approaching the signal must cause it to stop before entering the intersection.

Pedestrian fail failure to yield

154. When a red light is exhibited by a traffic control signal, a pedestrian approaching the signal must yield the right of way to vehicles lawfully in the intersection.

154.1. A pedestrian may proceed into or through an intersection despite facing a red light if there are no vehicles in the vicinity to which he or she must yield the right of way.

154.2. Once a pedestrian is in an intersection, he or she has the right of way to finish crossing the intersection, but if another vehicle approaches, the pedestrian must immediately exit the intersection and has the right of way for that purpose.

Fail Failure to obey lane direction control signal

155. Where lane direction control signals are placed over individual lanes of a roadway, vehicular traffic may travel in a lane over which a green signal is shown, but must not enter or travel on a lane over which a red signal is shown.

Interfere Interfering with traffic control device

156. A person must not interfere with a traffic control device by

- (a) tampering with it;
- (b) altering, removing, or damaging it;
- (c) obstructing it;
- (d) otherwise interfering with the operation of it.

Fail Failure to obey roadside worker

157. If a roadside worker is controlling the movements of traffic around the section of roadway that is closed to traffic, a person must not drive or operate a vehicle other than as directed by the roadside worker.

Drive Driving without due care

158. A person must not drive a motor vehicle on a roadway

- (a) without due care and attention, or
- (b) without reasonable consideration for other persons using the roadway.

Slow driving

159. A person must not drive a motor vehicle at so slow a speed as to impede or block the normal and reasonable movement of traffic, except when it is necessary for safe operation or in compliance with law.

Impeding traffic

160. A person must not cause a motor vehicle to impede or block the normal and reasonable movement of traffic by stopping it on a roadway, except when it is necessary for safe operation or in compliance with law.

Speed on roadway Speeding

161. A person must not drive or operate a motor vehicle on a roadway at a speed greater than the applicable speed limit but not greater than 40 km/h over said limit.

Excessive speed speeding

162. A person must not drive or operate a motor vehicle on a roadway at a speed greater than 40 km/h over the applicable speed limit.

Change Changing lanes unsafely

163. A person must not drive a vehicle from one lane to another unless the driver has ascertained that movement can be made with safety and will in no way affect the travel of another vehicle.

Change Changing lanes over solid line

164. A person must not drive a vehicle from one lane to another if that action necessitates crossing a solid line.

Change Changing lanes without signal

165. If traffic may be affected by a lane change, a person must not change lanes without giving the appropriate signal.

Turn Turning from wrong lane

166. A driver approaching an intersection intending to turn must drive the vehicle in the lane nearest to the side the driver intends to turn towards.

Cross Crossing solid double line

167. The driver of a vehicle must not cause the vehicle to cross a solid double line at the centre of a roadway.

Fail Failure to keep right of line

168. The driver of a vehicle must drive the vehicle to the right of the line at the centre of a roadway, except when passing.

Fail Failure to pass safely

169. The driver of a vehicle passing another vehicle must cause the vehicle to pass to the left of the other vehicle at a safe distance, and must not cause or permit the vehicle to return to the right side of the roadway until safely clear of the passed vehicle.

Pass on left unsafely

170. A driver of a vehicle must not drive to the left side of the roadway in passing another vehicle unless the driver can do so safely.

Pass on right unsafely

171. The driver of a vehicle must not cause or permit the vehicle to pass and pass on the right of another vehicle, unless the movement cannot be made safely and without driving the vehicle off the roadway.

Fail Failure to yield to passing vehicle

172. A driver of a passed vehicle must not increase the speed of the vehicle until completely passed by the passing vehicle.

Follow too closely Tailgating

173. A driver of a vehicle must not cause or permit the vehicle to follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of the vehicles and the amount and nature of traffic on and the condition of the roadway.

Improper turn

174. If at an intersection there is a traffic control device indicating the course to be travelled by vehicles turning at the intersection, a driver must turn a vehicle at the intersection in the manner directed by the traffic control device.

Unsafe U-turn

175. A driver must not turn a vehicle so as to proceed in the opposite direction unless the driver can do so without interfering with other traffic.

Prohibited U-turn

176. A driver must not turn a vehicle so as to proceed in the opposite direction at a place where a sign prohibits making a U-turn.

Unsafe start

177. A person must not move a vehicle that is stopped, standing, or parked unless the movement can be made with reasonable safety and he or she first gives the appropriate signal.

Fail Failure to signal on turn

178. If traffic may be affected by turning a vehicle, a person must not turn it without giving the appropriate signal.

Fail Failure to yield to bus

179. A driver on a roadway, on overtaking a bus that is stopped, standing, or parked, must yield the right of way to the bus if the bus driver has signalled an intention to move into the travelled portion of the roadway.

179.1. A bus driver must not move a bus into the travelled portion of the roadway unless it is safe to do so.

Fail Failure to obey yield sign

180. The driver of a vehicle facing a yield sign must yield the right of way to all other traffic.

Fail Failure to yield for emergency vehicle

181. On the immediate approach of an emergency vehicle giving an audible signal by a bell, siren, or exhaust whistle, and showing a visible flashing red light, except when otherwise directed by a peace officer, a driver must yield the right of way, and immediately drive to a position as close as possible to the nearest edge or curb of the roadway, clear of an intersection, and stop and remain in that position until the emergency vehicle has passed.

Fail Failure to yield to pedestrian in crosswalk

182. The driver of a vehicle must yield the right of way to a pedestrian when the pedestrian is crossing the roadway in a crosswalk

Fail Failure to obey stop sign

183. Except when a peace officer directs otherwise, if there is a stop sign at an intersection, a driver of a vehicle must stop before entering the intersection.

Fail Failure to park off roadway

184. A person must not stop, park or leave a vehicle on the roadway.

Obstruct Obstructing traffic by parking

185. A person must not park a vehicle so as to obstruct the free passage of traffic on the roadway.

Park Parking on sidewalk

186. Except when necessary to avoid conflict with traffic or to comply with the law or the directions of a peace officer or traffic control device, a person must not stop, stand, or park a vehicle on a sidewalk.

Park near hydrant

187. Except when necessary to avoid conflict with traffic or to comply with the law or the directions of a peace officer or traffic control device, a person must not stop, stand, or park a vehicle within 5 metres of a fire hydrant.

Park Parking on or near crosswalk

188. Except when necessary to avoid conflict with traffic or to comply with the law or the directions of a peace officer or traffic control device, a person must not stop, stand, or park a vehicle on a crosswalk or within 5 metres of the approach side of a crosswalk.

Park Parking near traffic control device

189. Except when necessary to avoid conflict with traffic or to comply with the law or the directions of a peace officer or traffic control device, a person must not stop, stand, or park a vehicle within 5 metres of a stop sign, signal, or other traffic control device.

Park in tunnel or on bridge

190. Except when necessary to avoid conflict with traffic or to comply with the law or the directions of a peace officer or traffic control device, a person must not stop, stand, or park a vehicle in a tunnel or on a bridge.

Park Parking where prohibited

191. Except when necessary to avoid conflict with traffic or to comply with the law or the directions of a peace officer or traffic control device, a person must not stop, stand, or park a vehicle in a place in contravention of a traffic control device that gives notice that stopping, standing or parking there is prohibited or restricted.

Reverse Reversing when unsafe

192. The driver of a vehicle must not cause the vehicle to move backwards into an intersection or over a crosswalk, and must not in any event or at any place cause a vehicle to move backwards unless the movement can be made safely.

Passenger unlawfully on motorcycle

193. A person, other than the operator, must not ride on a motorcycle on a roadway unless the motorcycle is designed and equipped to carry more than one person.

Ride motorcycle without required helmet

194. A person must not operate or ride as a passenger on a motorcycle on a roadway if the person is not wearing a motorcycle safety helmet.

Drive while view obstructed

195. A person must not cause a vehicle to move on a roadway if the view of the driver to the front or sides of the vehicle is obstructed.

Follow fire truck too closely

196. A driver other than that of an emergency vehicle must not follow a fire truck closely as to obstruct or interfere with that fire truck.

Park near fire truck

197. A driver other than that of an emergency vehicle must not park within 5 metres of a fire truck which has stopped to respond to an incident.

Drive over fire hose

198. Unless he or she has received consent of the fire department official in command or a peace officer, a person must not drive a vehicle over a hose of a fire department when laid down on a roadway.

Drive Driving on sidewalk

199. A driver must not drive on a sidewalk or walkway, except when entering or leaving a driveway or lane or when entering or leaving land adjacent to a roadway.

Use phone while driving

200. A person must not use a phone while driving or operating a motor vehicle on a roadway for a purpose which does not relate to driving or navigation.

200.1. This section does not apply to emergency services in the lawful conduct of their duties.

200.2. This section does not apply to a person who uses a phone to call or send a message to a police force, fire department or ambulance service about an emergency.

200.3. This section does not apply to a person who uses a phone while operating a motor vehicle that is safely parked off the roadway or lawfully parked on the roadway and is not impeding traffic.

Operate vehicle while person riding on vehicle

201. A person must not drive or operate a vehicle on a roadway if there is a person riding on the vehicle.

Fail Failure to slow down or move over near stopped official vehicle

202. A person driving a motor vehicle on a roadway in either direction must, when approaching or passing any official vehicle with flashing red, blue, white, or amber lights,

- (a) drive the vehicle at no more than, if the applicable speed limit is,
 - (i) 80 km/h or more, 70 km/h,
 - (ii) less than 80 km/h, 40 km/h, or
 - (iii) less than 40 km/h, the applicable speed limit; and
- (b) if the driver is travelling in a lane adjacent to the stopped official vehicle, move the driver's motor vehicle into another lane.

ENACTMENT

203. This by-law supersedes any conflicting by-laws and, in particular, repeals

203.1. The British Columbia Criminal Code

203.2. The British Columbia Vehicle Code

203.3. The Vancouver Criminal Code

203.4. The Vancouver Vehicle Code

203.5. C.B. 3, except any sentence or clause that refers to the *Torts Act*

203.6. C.B. 6

203.7. C.B. 23, section 5

203.8. C.B. 26

203.9. C.B. 29

203.10. C.B. 33

203.11. C.B. 37

203.12. C.B. 38

203.13. C.B. 47

203.14. C.B. 53

203.15. C.B. 54

203.16. C.B. 55

203.17. C.B. 56

203.18. C.B. 59

203.19. C.B. 64

203.20. C.B. 68

203.21. C.B. 69

203.22. C.B. 71

203.23. C.B. 74

203.24. C.B. 80

203.25. C.B. 85

203.26. C.B. 87

203.27. C.B. 88

203.28. C.B. 91

203.29. C.B. 94

203.30. C.B. 97

203.31. C.B. 98

203.32. C.B. 99

203.33. C.B. 103

203.34. C.B. 110

203.35. C.B. 111, section 3(f) and 4(b)

204. This By-law is to come into force and take effect on the date of its enactment.

SCHEDULE A

Terms of imprisonment for indictable offences

Offence	Imprisonment (seconds)
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N.B. Text in red indicates repealed provisions which are no longer in force. Text in green indicates amendments.

Treason	1500
Intimidating government	600
Sabotage	540
Sedition	1200
Terrorism	900
Mishandling explosives causing death	720
Mishandling explosives causing bodily harm	660
Mishandling explosives	600
Using explosives	540
Aggravated firearms trafficking	720
Bribery in judicial proceedings	700
Bribery of officers	600
Perjury	720
Fabricating evidence	720
Criminal negligence causing death	600
First degree murder	720
Second degree murder	660
Manslaughter	540
Attempted murder	540
Accessory to murder	360
Conspiracy to murder	360
Discharging a firearm with intent to wound	480
Recklessly discharging a firearm	420
Aggravated assault	480
Torture	700
Aggravated assault of peace officer	480
Aggravated kidnapping	660
Kidnapping	480
Dangerous operation causing death	600
Failure to stop after accident involving death	420
Theft over	420

N.B. Text in red indicates repealed provisions which are no longer in force. Text in green indicates amendments.

Government property theft	480
Stopping conveyance with intent	480
Aggravated robbery	540
Robbery	480
Extortion	660
Break into dwelling house	420
Possession of exceeding property obtained by crime	480
Trafficking exceeding property obtained by crime	480
Aggravated intimidation	480
Mischief endangering life	540
Mischief of exceeding value	480
Aggravated arson	600
Arson	540
Aggravated mishandling information	900
Attempt indictable offence	420
Accessory to indictable offence	420
Conspiracy to indictable offence	420
Participation in criminal organization	460
Trespass on defence property	400
Espionage	1200
Aggravated wrongful possession of information	600

SCHEDULE B

Terms of imprisonment and fines for hybrid offences

Offence	Imprisonment (seconds)	Fine (\$)
Rioting	300	1500
Possession of explosives	420	2500
Careless use of firearm	420	2500
Pointing a firearm	360	1800
Possession of weapon for dangerous purpose	360	1800

N.B. Text in red indicates repealed provisions which are no longer in force. Text in green indicates amendments.

Unauthorized possession of a firearm	300	1500
Unauthorized possession of a restricted firearm	360	1800
Unauthorized possession of a prohibited firearm	360	1800
Unauthorized possession of ammunition	300	1500
Possession contrary to order	360	1800
Possession of weapon at unauthorized place	300	1500
Firearms trafficking	420	2500
Frauds on the government	420	2500
Breach of trust	360	1800
Corruption	420	2500
Disobeying a statute	360	1800
Disobeying order of court	360	1800
Misconduct of officers	360	1800
Obstruction of a peace officer	360	1800
Aggravated personating officers	300	1500
Personating officers	180	900
Obstructing Obstruction of justice	360	1800
Public mischief	360	1800
Concealment of offence	360	1800
Prison breach	420	2500
Escape without excuse	300	1500
Failure to attend court	360	1800
Failure to comply with undertaking	360	1800
Assisting or negligently permitting escape	360	1800
Rescue or wilfully permitting escape	420	2500
Fail to pay exceeding fine	180	900
Common nuisance	180	900
False alarm of fire	240	1200
Interfering with roadside workers	300	1500
Interfering with rescue	300	1500
Indignity of dead body	240	1200

N.B. Text in red indicates repealed provisions which are no longer in force. Text in green indicates amendments.

Criminal negligence causing bodily harm	420	2500
Criminal harassment	360	1800
Uttering threats	240	1200
Assault with a weapon	420	2500
Assault causing bodily harm	420	2500
Assault with conveyance	420	2500
Assault	360	1800
Unlawfully causing bodily harm	360	1800
Assault peace officer with a weapon	420	2500
Assault peace officer causing bodily harm	420	2500
Assault peace officer	390	2000
Disarming a peace officer	420	2500
Forcible confinement	360	1800
Publishing defamatory libel	180	900
Public incitement of hatred	180	900
Dangerous operation causing bodily harm	360	1800
Dangerous operation	300	1500
Failure to stop after accident involving bodily harm	240	1200
Failure to stop after accident	180	900
Flight from peace officer	300	1500
Operating armoured vehicle unlicensed	300	1500
Operation while prohibited	180	900
Theft under	240	1200
Motor vehicle theft	300	1500
Fraudulent concealment	240	1200
Break into non-dwelling house	270	2000
Unlawfully in a dwelling-house	180	900
Possession of break-in instruments	180	900
Disguise with intent	180	900
Possession of property obtained by crime	240	1200
Trafficking property obtained by crime	300	1500

N.B. Text in red indicates repealed provisions which are no longer in force. Text in green indicates amendments.

Forgery	300	1500
Fraud	240	1200
Intimidation	330	1600
Mischief	240	1200
Arson by negligence	360	1800
Mishandling information	660	3200
Wrongful possession of information	360	1800
Attempt hybrid offence	180	900
Accessory to hybrid offence	180	900
Conspiracy to hybrid offence	180	900
Illegal climbing	100	600
Obstruction of emergency services	260	1800
Loiter on defence property	240	1200

SCHEDULE C

Terms of imprisonment and fines for summary offences

Offence	Imprisonment (seconds)	Fine (\$)
Unlawful assembly	120	600
Personating security	120	600
Fail to pay fine	120	600
Disorderly conduct	120	600
Causing disturbance	120	600
Operating unsafe conveyance	120	600
Trespassing	120	600
Practice without license	120	600
Doing business unlicensed	120	600
Attempt summary offence	120	600
Accessory to summary offence	120	600
Conspiracy to summary offence	120	600
Trespassing on government property	600	600

N.B. Text in red indicates repealed provisions which are no longer in force. Text in green indicates amendments.

Desertion	300	-
Stolen valour	180	900

SCHEDULE D

Fines for traffic infractions

Contravention	Fine (\$)
Fail Failure to remain at scene of accident	500
Fail Failure to stop for police	400
Fail Failure to state name identify	300
Unsafe driving of official vehicle	400
Fail Failure to obey police direction	300
Fail Failure to obey traffic control device	100
Fail Failure to yield to pedestrian at intersection	100
Fail Failure to yield to vehicle	100
Fail Failure to stop for yellow light	100
Fail Failure to stop for red light	100
Pedestrian fail failure to yield	100
Fail Failure to obey lane direction control signal	200
Interfere Interfering with traffic control device	400
Fail Failure to obey roadside worker	300
Drive Driving without due care	400
Slow driving	150
Impeding traffic	200
Speed on roadway Speeding	200
Excessive speed speeding	400
Change Changing lanes unsafely	50
Change Changing lanes over solid line	50
Change Changing lanes without signal	50
Turn Turning from wrong lane	50
Cross Crossing solid double line	50
Fail Failure to keep right of line	100

N.B. Text in red indicates repealed provisions which are no longer in force. Text in green indicates amendments.

Fail Failure to pass safely	100
Pass on left unsafely	100
Pass on right unsafely	100
Fail Failure to yield to passing vehicle	100
Follow too closely Tailgating	100
Improper turn	50
Unsafe U-turn	50
Prohibited U-turn	50
Unsafe start	100
Fail Failure to signal on turn	50
Fail Failure to yield to bus	300
Fail Failure to obey yield sign	100
Fail Failure to yield for emergency vehicle	300
Fail Failure to yield to pedestrian in crosswalk	100
Fail Failure to obey stop sign	100
Fail Failure to park off roadway	150
Obstruct Obstructing traffic by parking	150
Park Parking on sidewalk	150
Park near hydrant	200
Park Parking on or near crosswalk	150
Park Parking near traffic control device	150
Park in tunnel or on bridge	200
Park Parking where prohibited	150
Reverse Reversing when unsafe	100
Passenger unlawfully on motorcycle	300
Ride motorcycle without required helmet	300
Drive while view obstructed	300
Follow fire truck too closely	200
Park near fire truck	200
Drive over fire hose	300
Drive Driving on sidewalk	300

N.B. Text in red indicates repealed provisions which are no longer in force. Text in green indicates amendments.

Use phone while driving	300
Operate vehicle while person riding on vehicle	400
Fail Failure to slow down or move over near stopped official vehicle	300
Illegal parking	50

SCHEDULE E

Non-restricted firearms

Name of firearm	Common name (if applicable)
Sig Sauer P226	P226
Revolver	-
Hunting Rifle	-

SCHEDULE F

Restricted firearms

Name of firearm	Common name (if applicable)
Colt Canada C8	C8
Remington 870	-
Smith & Wesson 5946	SW5946
Sniper Rifle	-
Heckler & Koch MP5A3	MP5
Heckler & Koch MP5SD3	MP5SD

SCHEDULE G

Prohibited firearms

Name of firearm	Common name (if applicable)
Tec-9	-
Sawed Off Shotgun	-
AK-47	-
Uzi	-

SCHEDULE H

Regulated ammunition

Name of ammunition	Common name (if applicable)
-	-

ENACTED by Council this 23rd day of September, 2023

Signed "xXKenPlays"

President Pro Tempore, Sponsor

Signed "Dylatk1"

City Councilor, Co-Sponsor

Signed "sithmaster921"

Mayor